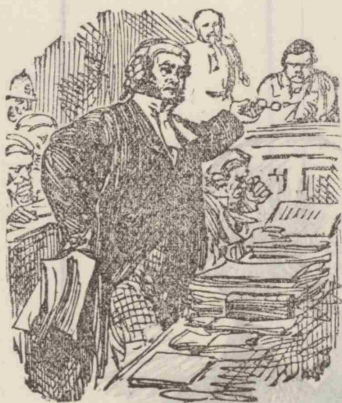


Law and Crime.



COMMITTAL OF O'DONNELL FOR TRIAL ON THE CHARGE OF SHOOTING JAMES CAREY.

Our Artist resumes his sketches in Court of Patrick O'Donnell and of the witnesses and counsel concerned in the case. On Friday, Sept. 28, O'Donnell was again placed in the dock of Bow-street Police Court, before Mr. Flowers, charged with the wilful murder of James Carey, the Dublin Invincible and Informer, on board the ship Melrose, twenty-five miles off Cape St. Blaize, while on a voyage from Cape Town to Port Elizabeth, on July 29 last. The court was densely crowded, and great numbers of people thronged Bow-street to watch the van, with its mounted escort, arrive from Newgate, where the prisoner had been confined. O'Donnell, forty-eight years of age, was described as a puddler, a native of Gondure, county Donegal.

Mr. Poland, instructed by Mr. Stephenson and Mr. Thomas, solicitors to the Treasury, conducted the prosecution. Mr. A. M. Sullivan, instructed by Mr. Guy, defended the prisoner. The court was crowded with spectators. Among those who were favoured with seats near the magistrate were Mr. Wilson Barrett and Mr. M'Coan, M.P.

Chief Superintendent Williamson and Inspector Thompson, of Scotland-yard, represented the police authorities.

The prisoner maintained a somewhat defiant air throughout, smiling occasionally at the answers of the witnesses. It will be seen that he has a stubby beard.

Mr. A. M. Sullivan's evident intention in cross-examination was to show that O'Donnell had shot Carey in "self-defence," as the prisoner alleged. James Parish, officers' servant on board the Melrose, deposed that he had seen Carey and O'Donnell facing each other in the saloon, that he only heard the first shot, but was in time to see O'Donnell fire the second and third shots at Carey's staggering figure. Further questioned by Mr. A. M. Sullivan as follows, Parish answered with clearness:—

Q. Why had you no fear that a fourth shot would be fired?—He was then putting the revolver in his pocket. Carey's wife was the first person who went to him after the firing. She caught him round the neck. He was staggering along the side of the cabin; he was not leaning against it at all. They both fell together. I did not hear Mrs. Carey make any exclamation as the deceased fell. I did not at that moment notice young Carey. Mrs. Carey got up, and I knelt down to stop the blood which was flowing. I did not hear her say anything.

Q. Jones did not hear the first shot fired either. He said he had his back turned to him; but, his attention having been called to the two by the shot, "I saw Carey slow round from the prisoner, and the prisoner fired two more shots at him." Parish and he (Jones) called out "Murder!" He then saw Mrs. Carey go up to the prisoner and say something. O'Donnell replying, "Shake hands, Mrs. Carey; I did not do it."

Thomas Francis Carey, son of the deceased, repeated that the prisoner fired the first shot at his father:—

Q. You swore that you saw the prisoner take the revolver out of his pocket, hold it towards your father, and fire!—Yes. . . . What did you do then? I walked out of the cabin. I saw the third shot fired. I saw my mother and father fall down, and I put the revolver in my pocket. . . . I saw my mother go up to O'Donnell. I did not follow her. I went up near O'Donnell. I think I was there before she came up.

Q. When she came up, what happened?—My mother said, "Macdonald, did you shoot my husband?" or "You shot my husband."

Q. What did Macdonald say?—As far as I can remember he said,—"Shake hands, Mrs. Carey, I was sent to do it." Now, Sir, I want that answer with great care from you. "I was sent to do it." Do you swear he said those words in particular?

Witness, who had answered all the questions with perfect clearness and apparent straightforwardness, paused several moments in deep reflection before answering.

Mr. Sullivan—On your oath, did he say "I was sent to do it?"

Witness still paused.

Mr. Sullivan (repeating)—Did he say "I was sent to do it?"

Witness—He did.

Are you quite sure?—Yes.

"I was sent to do it?"—I heard him say that.

Were you always sure of it?—Yes, I was always sure of it.

Pressed further on, young Carey appeared to be less certain:—

Were the words, "He said, 'Mrs. Carey, I did not do it,' or, 'I had to do it,'" in your evidence given at Port Elizabeth?—I think they were, Sir.

Those are the words which you have certified as being correct by signing the depositions?—Yes.

Then these are the words that the prisoner used?—Yes.

You are certain? I'll give you any time to think. You say now that those are the words the prisoner used?—No.

Now tell me, Master Carey, is your memory clear in the matter?—No, Sir.

Did you ever make this version, "I was sent to do it," until your mother had said it at Port Elizabeth?—I must not have done so.

Mr. Becher (second officer of the Melrose), and Inspector Cherry, of Port Elizabeth, having also been cross-examined,

Mrs. Margaret Carey was called, and appeared in the witness-box dressed in deep mourning. In reply to questions by Mr. Poland, she said:—On July 1 last I sailed from London in the Kinfauns Castle with my children. My husband, James Carey, joined me at Dartmouth. On my way out to the Cape I made the acquaintance of the prisoner. I knew him by the name of Macdonald. There was a woman with him who passed as his wife. He said he was going to Capetown. On the way out he and my husband were on friendly terms. They played draughts together. Mrs. Carey then went on to say that on the Sunday in question the prisoner fetched Carey down to the saloon to have a bottle of ale.

Hearing the shots, she went up to her dying husband, and then walked up to the prisoner,

and said to him, "Macdonald, did you shoot my husband?" He said, "Shake hands, Mrs. Carey; don't blame me; I was sent to do it." Mrs. Macdonald spoke, and said, "Don't mind, Macdonald, you are no informer."

Mr. Sullivan could not shake Mrs. Carey's evidence on this point; but he most searchingly cross-examined Dr. F. Ensor, the Port Elizabeth surgeon, who saw the body of Carey, with the view of indicating the extreme probability of Carey being strong enough and near enough to have grappled successfully with O'Donnell had he seen the revolver aimed at him.

Mr. Poland soon after said, "That is the case for the Crown." Mr. Sullivan stated that he had received a telegram stating that certain depositions would reach the solicitor for the defence, but the terms were not so clear as to warrant his interposing at this stage. The proper plan would be to present them to another court, and he would therefore not trouble the magistrate with them.

Mr. Flowers (to prisoner)—I suppose you leave your defence in the hands of your counsel; but if you wish to say anything you may.

Prisoner—I have nothing to say at present, my Lord.

The prisoner was committed to take his trial at the October Sessions of the Central Criminal Court. As he left the dock he waved his hand to his counsel.

On taking his departure in the prison van for Newgate, guarded by half-a-dozen mounted constables with drawn cutlasses, a large crowd in the street made a noisy demonstration favourable to the prisoner.

A telegram from New York says, "Judge William Fullerton and General Roger Pryor have been retained by the trustees of the American O'Donnell Defence Fund to defend the prisoner at his trial. They will act in concert with the English counsel, but they have already decided to apply for a postponement of the trial."

THE TRIAL OF O'DONNELL.

It is reported that an application will be made on the part of the defence to postpone the trial of Patrick O'Donnell, which would in the ordinary course take place at the ensuing October sessions, until the November sessions, and it is understood that the Crown will offer no objection to this course being adopted. Though no definite arrangements as to the employment of counsel have yet been made, it is known that, in addition to Mr. A. M. Sullivan, a strong bar will be engaged for the defence.

HARLEY-STREET QUARREL.

Edward Collins, a hairdresser, was remanded at the Marlborough Police Court, last Monday, on a charge of attempting to murder Benjamin Bass, the butler of a gentleman residing in Harley-street. About two o'clock on Sunday morning the inmates of the house were aroused by a violent ringing of a bell. They found the butler in his bed-room, with a jagged cut in his throat and several wounds about his neck. He stated that Collins, who was in the habit of visiting the servants, had stabbed him. The prisoner was arrested at his lodgings, where a suit of clothes saturated with blood was found.

GOULDSTONE'S MANIA.

After the official announcement which was made on Monday, there can be no doubt that Gouldstone, the Walthamstow murderer, will be removed to the Criminal Lunatic Asylum. Dr. Orange, the Medical Superintendent of the Broadmoor Asylum, who was

sent down to Chelmsford to see Gouldstone, entertains no doubt of his insanity. His mother and aunt were insane, and his great-uncle committed suicide.

BLOOMSBURY MYSTERY.

On Monday morning a woman named Pole was found dead in a house in Bloomsbury-street, while her husband was discovered "very drunk" in the adjoining kitchen. He professed perfect ignorance of his wife's death, saying that he had gone to get brandy for her, but that was all he knew. He was arrested, and on being brought up at Bow-street, was remanded pending an inquest.

East Post.

O'DONNELL'S DEFENCE.

The Central News Agency circulates a statement, which it says has been transcribed from documents in the possession of O'Donnell's friends, and contains the whole story of the occurrence on board the Melrose, chiefly as narrated by the prisoner in the course of a long interview:—

"Well, you heard the evidence given by some of the witnesses, that while you were quietly sitting down you shot Carey in your presence, and said you were sent to do it?" (Prisoner, very angrily.) "But you don't mean to say that anyone believes that?" "As God, mustn't they all know that if I was sent to do harm to him, or wanted to do harm or hurt to him, I had a hundred good chances on the voyage out; and any of them can tell you that. Many a dark and stormy night we used to be alone smoking and chatting in nooks and corners on the deck till eleven o'clock at night. Ask any of the ship's people about that. It was a terrible rough passage out to the Cape, and if anyone that was after Carey was on board, God help us, he could have been shot and pitched overboard twenty times many of these nights without anyone seeing it. Sure the witnesses swore that before the magistrate."

He says he tried to avoid Carey that Sunday, but he followed him about and clung on to him. He made some excuse to shake him off on deck, and was going below when Carey told him to order some ale for him, and call him down when "was ready." Carey came down soon after and in good humour, and asked for his ale, and sat down to drink it. As they sat at the table Carey, decidedly excited with liquor or else some very nervous, noticed O'Donnell's manner to be strange, and seemed evidently to suspect something. "What did you do with your pistol—have you got it?" said Carey. "I sold it at the Cape," replied O'Donnell, evasively. "Why do you ask?" "Because I can tell you it might have got you into trouble. You alarmed people when you fired at the flying fish." "It alarmed no one who had not cause to have fear in his heart," replied O'Donnell. Carey started as if stung, and went off, returning in a while. After standing a moment moodily, he suddenly taxed O'Donnell in a challenging tone with his changed manner. O'Donnell most earnestly associates that at this instant (as far as he ever was afraid of any man, which was not much) he realised he was in the grip of a bully and a murderer, who would fasten a quarrel on him if he found he was discovered. Carey, on the other hand, according to O'Donnell's description, appeared as if he expected that any Irishman who found him out was surely sent to kill him.

Scarcely had O'Donnell uttered some bitter observation as to the rumour about Carey (which if the man were lower could not offend him) than "in the clapping of your hands, or," he says, "while you'd be marking M," the two men were on their feet, and in grips; each one of them pistol in hand. O'Donnell, with impressive earnestness, says that the whole thing was so instantaneous that he hardly did anything but half mechanically till all was over. "Both of us, no doubt," he says, "were somehow in a state to go off at half-cock." "I distinctly recollect," says O'Donnell, "I gave a glance to see what it was a pistol or a knife, or what thing he drew, but it was a revolver. When I whipped out mine with my right hand, my left hand gripped in his collar being paralysed, I found my grasp on his gone, and that with his greater strength in two seconds I was beat. As he was crushing me down against the end of the table, seeing him put his pistol to my face, I made a grab at it and fired. My belief is, though I may be mistaken, that at the moment I snatched or dashed the pistol out of his hand as I fired, or, it may be, it fell from him; but it went on to the floor six feet away. He rushed, partly stooping, as if to pick it up, and I fired again, not deliberately, but for my life. I really thought I fired but one shot the second time. I tell you his son picked that pistol off the floor afterwards, and there is not one word of truth in his story about his getting it out of a bag." "He certainly did not say he so got it when questioned by the second officer."

The Pope is seriously indisposed.—King Alfonso has sent 10,000 francs to the poor of Paris.—Cetewayo can only escape by a miracle if the British force moves rapidly from Eshowe.

The Social Science Congress was opened at Huddersfield last Wednesday evening, when the President, Sir R. Temple, delivered his address. His subject was the application of social sciences to the British Empire abroad, and he dealt with it in three main divisions—physical comfort and material well-being, mental and moral training, and social organisation.

FLORILINE.—For the Teeth and Breath. The best liquid dentifrice in the world. It thoroughly cleanses partially-decayed teeth from all parasites or living "animalcules," leaving them pearly white, and a delightful fragrance to the breath. Price 2s. 6d. per Bottle. The Fragrant Floriline removes instantly all odours arising from a foul stomach or tobacco smoke, being partly composed of honey, soda, and extracts of sweet herbs and plants. It is delicious to the taste, and harmless as sherry. Sold by Chemists and Perfumers everywhere.—[ADVT.]

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